

ORDER SHEET**IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT****WP No. 17066 of 2019**Liaqat Ali
vs
ADJ etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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27.03.2019 Mr. Walayat Khan Mujahid, Advocate.

Through this constitutional petition, the petitioner has called in question the order dated 20.04.2018 passed by the trial court, whereby the judgment and decree earlier passed by the said court was corrected on an application filed by respondent Nos. 3 and 4 ("respondents") and has also called in question the order dated 23.01.2019, whereby an appeal filed by the petitioner there against has been dismissed by the appellate court.

2. Learned counsel submits that after passing of more than 5 years, the trial court was not justified to correct the judgment and decree passed on 22.10.2013 through impugned order dated 20.04.2018 and if any correction had to be made in the impugned judgment and decree, paragraph 5 of the same instead of the relief clause and decree passed as a consequence thereof should have been corrected.

3. The original judgment dated 22.10.2013 in paragraph 5 held respondent No.4/plaintiff No.2 therein entitled to recover Rs.1,000/- per month as past maintenance allowance from date of institution of the suit.

and Rs.1500/- per month as future maintenance allowance with 15% annual enhancement while in the relief portion of the judgment and decree sheet, only Rs.1,000/- was mentioned as maintenance allowance of the respondent No.4 with 15% annual enhancement. The said discrepancy was clarified by the trial court by rectifying the order and holding the said respondent entitled to receive Rs.1500/- as maintenance allowance with 15% annual increment as per paragraph 5 of the judgment. The appellate court has also upheld the said decision. The claim of the petitioner is that instead of rectifying the prayer and the decree sheet, paragraph No.5 should have been rectified but it is settled by now that the decree follows the judgment and judgment means reasons given by the court for passing any order or decree. In paragraph 5 the reasons were provided by the court and consequently as a result thereof the court reached the conclusion that the said respondent was entitled to receive Rs.1500/- as maintenance allowance with 15% annual increment and relief clause and the consequent decree had to follow the said reasoning. Therefore, there is no ground to interfere in the concurrent findings of fact reached by the courts below, whereby a mistake has been rectified.

4. For what has been discussed above, this petition being devoid of any merit is *dismissed*.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *